

Combating discrimination in education

Tenth consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Approved by the UNESCO Executive Board at its 207th session in October 2019

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, respond to UNESCO’s constitutional mandate to “*advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social*”. The Convention is the first legally binding international instrument providing for the **right to education** and the only one exclusively devoted to it.

The right to education is today one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community. SDG4 is rights-based and seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

The Convention has been recognized as a **cornerstone of Education 2030 agenda**. It also represents a powerful tool to advance SDG4 by ensuring effective articulation between normative and operational work.

The present Guidelines are intended to assist Member States in the preparation of national reports on the implementation of the Convention as well as the Recommendation in the context of the 10th Consultation.

2. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are obliged to incorporate its provisions into their national Constitution or domestic law. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain states might experience, in particular on account of their federal structure, in ratifying the Convention.

Bearing in mind the differences in wording and in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

Most importantly, the reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

3. Participation in consultations

In light of the Education 2030 agenda, the monitoring of the implementation of the Convention and the Recommendation is of crucial importance in order to ensure an education that is truly for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. Concrete measures taken by Member States in accordance with their legal obligations under these instruments contribute to this process.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG4 on education, efforts have also been made to ensure that the specific components are included in the guidelines and that the guidelines serve as a valuable monitoring tool for measuring progress towards SDG4 targets.¹ In addition, in view of the educational challenges posed by the influxes of refugees and displacements worldwide, the guidelines provide the opportunity to report on concrete measures taken during the reporting period to include refugees and migrants in their educational systems. An emphasis is also to be placed on legal and policy framework that protects the rights of national minorities.

The reporting should be as comprehensive as possible and the process needs to be **participatory** and conducted in cooperation between ministries of education and other ministries dealing with aspects of the right to education. Relevant information from CSOs having education as their main field of activity should also be provided.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

4. General indications

The reporting period for the 10th Consultation on the implementation of the Convention and the Recommendation covers four years (2017-2020).

Member States that already reported to the 9th Consultation (2016-2017) are invited to **refer to their reports** when appropriate. Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

In the preparation of reports, Member States are kindly requested to provide brief and concise information, although they may provide details on the scope of the question if deemed necessary. In addition to a description of the constitutional, legislative, administrative and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

5. Modalities

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, two series of questions/remarks are presented:

¹ Please note that the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms is used specifically for monitoring SDG target 4.7. The 1960 Convention and Recommendation contribute more generally to the body of evidence for monitoring the targets of SDG4.

- (1) Open-ended and closed-ended questions to be directly filled in by Member States through a participatory process. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

In their responses, Member States are encouraged to provide information in a concise manner while preserving substantive and relevant content.

GENERAL INFORMATION:

Country name: **Brunei Darussalam**

Organization or entity responsible for the preparation of the report: **Ministry of Education**

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level

1. Ratification of the Convention²

Is your country a State Party to the Convention?

☒ Yes

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

→ *the obstacles, whether legal, institutional, political or practical*

→ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

☐ No, not considering ratification in the near future. Please explain why:

2. Ratification of the Protocol³ instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education

Has your country ratified the Protocol?

☐ Yes

☐ No, please briefly explain the difficulties encountered:

3. Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

☐ Yes

☐ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☐ Yes

☐ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☐ Yes

☐ No

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?
 - ☐ Yes
 - ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

*This corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.⁴*

- 1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁵ (several items could be ticked/mentioned):

- ☐ Constitutional laws and/or legislation prohibit discrimination in education
- ☐ Regulations prohibit discrimination in education
- ☒ Policies and programmes aim to eliminate and prevent discrimination in education
- ☒ Access to justice in case of violations of the right to non-discrimination in education
- ☒ Combatting discrimination in terms of curriculum
- ☐ Other:

⁴ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁵ See: Article/Paragraph 1(1).

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of pupils to educational institutions*
- ➔ *Non-differential treatment, including of foreign nationals' resident in your country*

1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- ☐ Constitutional laws and/or legislation guarantee equal access to education
- ☐ Regulations ensure equal access to all levels and types of education
- ☒ Policies and programmes ensure equal access to all levels and types of education
- ☐ Other:

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b⁶

The National Education System for the 21st Century (SPN 21): provides students with multiple pathways according to their individual capabilities, interests, inclination, growth and development, thereby catering to their needs.

Education Act, 2003 states: Minister of Education (MOE) "... shall provide special education in such government primary or secondary schools as he thinks fit and in any special school established by the Minister."

Special Education Policy Guidelines based on the principles of inclusive education in place since 1997: provides the initial framework for the development of an education system to meet the needs of students with special needs.

The application to TVET education via Technical and Vocational Education Centralised Admission System (TVECAS) and higher education via Higher Education Centralised Admission System (HECAS) objectively take accounts of merit/qualification of applicants.

1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

⁶ Which calls on states to "substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes".

- ☒ Providing financial incentives and fellowships
 - ☒ Providing positive or affirmative action measures
 - ☒ Ensuring inclusion in mainstream schools for all learners
 - ☒ Training teachers on inclusive education
 - ☒ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET)
 - ☐ Providing re-entry programmes for young mothers
 - ☐ Eliminating all barriers for pregnant girls or young mothers in education
 - ☒ Other:
- ☒ Providing auxiliary assistance
 - ☒ Adapting education infrastructure
 - ☒ Adapting curricula and methods
 - ☐ Providing language classes to newcomers (e.g. refugees)
 - ☐ Eliminating administrative barriers to education⁷
 - ☒ Providing flexible learning pathways
 - ☒ Valuing diversity in schools
 - ☒ Combatting stereotyping and stigmatisation

Ministry of Culture, Youth and Sport provides financial assistance under the State Welfare System (SKN).

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

Enrolment rates for girls and women in and through education In Brunei was 49.7% in 2018.

In particular, Higher Education and also Vocational and Technical Education (based on merits/capabilities via HECAS and TVECAS) has provided access to women in and through Vocational Technical and Higher Education as shown by enrolment rates of 54.5% (2018)

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☐ Yes

☐ No

Please provide reference to the relevant laws and provisions:

⁷ Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Is compulsory and free of charge pre-primary education available in your country?

☐ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

Compulsory education starts at 6 years old. Age of enrolment in pre-primary is 5 years at Government schools and 3-5 years at Private Schools.

☒ Pre-primary education is free of charge for all: Please provide the duration:

At Government schools, it is free for Kindergarten. Duration is one year (Pre-school)

At private schools, there are charges for Kindergartens. Duration is 3 years (KG1-KG3).

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

The Education Act, 2003 states that "The Minister may... establish and maintain kindergartens and pre-school classes.

However, Brunei has successfully achieved and maintained high pre-primary enrolment of five-year old children. School leaders actively engage parents at least eight months before the school year starts. Pre-primary orientation is carried out two months before school starts.

In 2018, total enrolment of students in all levels was 108,553 and total enrolment of pre-primary was 13,839 (12.7%)

This may be due to the availability of education allowance for children starting from the age of 5 years old for parents who are government employees.

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

⁸ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.

Primary education

- Is primary education compulsory in your country?

☒ Yes

☐ No

Please indicate the current duration period of compulsory education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

The duration period of compulsory education is 6 years (Year 1 to Year 6) and age of enrolment is 6 years old.

Due to the low barriers to access primary education, Brunei Darussalam has a high Net Enrolment Rate (NER) of 102.6% (2018)

- Is primary education available free of charge to all?

☒ Yes: Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

Government schools are free of charge and primary education is for 6 years (Year 1-6). For under-privileged students, the Government covers their school fees, stationary supplies and school uniform. Primary school children who live more than 5km away from their school are also eligible to apply for transportation to and from their school.

Further, children of Government Employees are eligible for subsidies for studying in private education institutions

The Compulsory Education Act, 2007 has also been implemented to ensure high participation rates for all students aged between 6 to 14 years old.

☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes

☐ No

• Please briefly provide information on the reforms taken:

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Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

☒ Yes: Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

Government Secondary Schools are free of charge for citizens and permanent residents but cost a minimal fee for foreigners. Duration for secondary is 5 years (Year 7 to Year 11), and duration for post-secondary is 2 years of Pre-University education (Year 12 to Year 13) and 3 years for Diploma.

Under-privileged students are eligible to apply for Government assistance in covering school fees, stationary supplies and school uniforms. Selected under-privileged students are provided with meal and also accommodation in hostels. Secondary school children who live more than 5km away from their school are also eligible to apply for transportation to and from their school.

The Compulsory Education Act, 2007 has also been implemented to ensure regular schooling and high participation rates for all students aged between 6 to 14 years old.

☐ No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

☒ Yes

☐ No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

The Compulsory Education Act, 2007 has been implemented to ensure regular schooling and high participation rates for all students aged between 6 to 14 years old. School absenteeism is addressed by the school according to standard operating procedures through home visits, counselling and various other services. If unresolved, chronically absent students are referred to the Student Affairs Division of the Department of Schools which can collaborate with other relevant agencies in taking appropriate joint action and services such as visits, assessments and child protection services.

The National Education System for the 21st Century (SPN 21): provides students with multiple pathways according to their individual capabilities, interests, inclination, growth and development, thereby catering to their needs.

The lower secondary level covers two years of common curriculum (Year 7 to Year 8). At the end of Year 8, students sit for the Student Progress Examination (SPE). Based on Student Progress Assessment (SPA), students are channelled to one of the following programmes:

- a. General Secondary Education Programme (Upper secondary)
 - i. Express (2 years)
 - ii. Normal (3 years)
- b. Applied Secondary Education Programme (3 years)
- c. Special Applied Programme (SAP) – Vocational & Technical Education (3 years)

Age of enrolment is 12 years old. In 2018, total enrolment of students in all levels was 108,553 and total enrolment of secondary was 34,247 (31.5%)

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

☒ Yes

☐ No

- Please provide reference to the relevant laws and provisions:

Yes, the Employment Order, 2009 is aligned to the Compulsory Education Act, 2007. The Compulsory Education Act, 2007 ensures regular schooling and high participation rates for all students (citizens of Brunei and also residing in Brunei) above the age of 6 years who has not yet attained the age of 15 years. On the other hand, the Employment Order, 2009 states that a person under the age of 16 shall not be capable of entering into a contract of service.

In 2018, total enrolment of students in secondary level is 34,247 and total dropout in secondary (6-15 years old) was 85 (0.248%)

Drop-out rate is insignificant in Brunei because of effective attendance monitoring system done by the Ministry of Education and assistance to ensure students to continue their schooling until completion of Year 11.

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁹, and target 4.4¹⁰.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹¹ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

- ☐ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training
- ☐ Regulations prohibit discrimination in higher education, including technical and vocational education and training
- ☒ Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training
- ☐ Other:

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*
- ➔ *Non-differential treatment, including of foreign students*

Applications on the Technical and Vocational Education Centralised Admission System (TVECAS) and Higher Education Centralized Admission System (HECAS) objectively take account of prerequisite academic qualifications/merits.

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”.

- ☐ Higher education is generally free of charge
- ☒ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience
- ☒ Higher education is accessible through financial incentives and scholarships

⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

¹⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

¹¹ See: Article/Paragraph 1(1).

- ☒ Higher education is accessible through positive or affirmative action measures
- ☐ Higher education is accessible through credit transfer system between states
- ☒ Other:

MoE Brunei Darussalam practices and provides equal gender opportunities and accessibilities in tertiary education level both locally and abroad.

Over the past decade since higher education was introduced in the Sultanate, the government has awarded scholarships to eligible locals as well as non-locals to study in Higher Education Brunei.

Apart from tuition fees borne by the government, scholarships may also include the bursaries for accommodation, books, food, personal spending as well as complementary medical treatment at any Brunei Government hospital whilst travel expenses to and from the scholar's country of origin are borne by the Brunei Government.

In terms of financial costing to enroll in the higher education in Brunei, generally there are different fees for different programs and type of degrees offered by institutions which can be accessed via the following link:

Universiti Brunei Darussalam (UBD)

For undergraduates:

- Tuition fees for Brunei Citizen range from BND 3,000 – BND 15,000 per year (Note: BND 15,000/year = Bachelor of Health Science (Dentistry))
- Tuition fees for International Students range from BND 3,000 - BND 40,000 per year (Note: BND 40,000/year = Bachelor of Health Science (Dentistry))

<https://ubd.edu.bn/admission/undergraduate/gennext-degree-programme/fees-and-funding.html>

For postgraduates:

PhD Programme:

- Tuition fees range from BND 1,500 – BND 2,000 per semester

Master's Degree Programme:

- Tuition Fees range from BND 3,000 – BND 78,000 per programme (BND 78,000/programme = Master of Public Policy and Management. This include tuition fees in UBD, tuition fees in US Partner Policy School, one semester compulsory health insurance in US, return airfare for BWN-USA, & 2 weeks study visit in Washington DC)

Master's Degree by Research only:

- Tuition Fees range from BND 750 – BND 3,250 per semester (BND 3,250/semester = Master of Health Science in Public Health)

[https://ubd.edu.bn/admission/graduate/fees-and-funding\(graduate\)/](https://ubd.edu.bn/admission/graduate/fees-and-funding(graduate)/)

Scholarships are also available for international students: [http://www.ubd.edu.bn/admission/graduate/fees-and-funding\(graduate\)/](http://www.ubd.edu.bn/admission/graduate/fees-and-funding(graduate)/) via Brunei

Darussalam Government Scholarship, UBD Graduate Scholarship and UBD Bursary (all details in the link provided) under 'Scholarships' tab.

Universiti Teknologi Brunei (UTB)

For undergraduates:

- For Brunei citizen/permanent resident = BND 4,000 – 4,500 /year
- For international students = BND 6,000 – 10,000 /year
BND 10,000 /year = Bachelors of Engineering

<http://www.utb.edu.bn/academics/undergraduate-tuition-fees/>

For postgraduates:

Master (Fulltime):

- For Brunei citizen/permanent resident = BND 3,500 /programme
- For international students = BND 5,250 – 12,000 /programme
[Masters in Petroleum Engineering = BND 12,000/programme]

Master (Part-time):

- For Brunei citizen = BND 2,250 – 2,500 /semester
- For international students = BND 3,375 – 3,750 /semester

Master (by Research)

- For Brunei Citizen/Permanent Resident = BND 4,000 /programme
- For international students = BND 6,00 /programme

PhD:

- For Brunei Citizen/Permanent Resident = BND12,000 /programme
- For international student = BND 15,000 /programme

<http://www.utb.edu.bn/academics/postgraduate-degree-fees/>

Universiti Islam Sultan Sharif Ali (UNISSA)

Higher National Diploma= BND \$3,000/programme

Bachelor's Degree= BND \$12,000/programme

Bachelor of Laws and Bachelor of Shariah Law= BND \$15,000/programme

<https://www.unissa.edu.bn/study/tuition-fee/>

PRIVATE INSTITUTIONS

General Course Fee for courses run by Private Higher Education Institutions based on Brunei Darussalam Qualification Framework (BDQF) Level per programme as follows:

BDQF Level	Course Fee Range
6	B \$ 29,000 – B \$ 35,000
5	B\$ 10,000 – B\$ 11,000

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

Citizens who are given scholarship by Government will also receive education allowance benefit.

As an alternative, an education loan facility is also made available to provide support for students who are keen to pursue higher education but do not meet the minimum requirements to qualify for scholarships.

2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☒ Provision of literacy programmes
- ☒ Provision of appropriate learning and life-skills programmes
- ☒ Provision of free of charge learning opportunities
- ☒ Provision of flexible learning pathways
- ☒ Provision of professional training and qualifications
- ☐ Other:

- Please elaborate further on the measures taken:

The Lifelong Learning Centre, Ministry of Education Brunei was newly established as a centre of excellence for expanding lifelong learning opportunities for strengthening communities.

TVET in Brunei Darussalam aims at developing a skilled and entrepreneurial workforce to spur economic development in the country as envisioned by Brunei's Vision 2035. The Institute of Continuing Education and Training (CET) under the Institute of Brunei Technical

Education (IBTE) offers relevant programmes such as Life Skills and Community Services Courses for school leavers and working adults.

In an effort to produce more quality manpower resources either at the semi-skilled or skilled level needed among youths, the Ministry of Culture, Youth and Sports (KKBS) through the **Youth Development Center (PPB)** will always assess job market demand to ensure compatibility courses with market demand. This provides the youth with employment opportunities and also contribute to the needs of economic development and progress of the country. PBB also opens the doors of the institution to youths from the Disabled to follow the skills courses offered at the center.

The Government of His Majesty Sultan dan Yang Di-Pertuan Negara Brunei Darussalam a scholarship scheme namely **Technical and Vocational Education Scholarship (BPTV)** for students after 'O' Level to pursue further studies in private higher education institutions (IPTS). One of the objectives of this scheme is to provide financial assistance to qualified students who do not have sufficient fund to pay tuition fees in IPTS.

The Yayasan Sultan Haji Hassanal Bolkiah was established based on some of the objectives are to enhance the standard of living and well-being of His Majesty's subjects by providing schemes of support for the less fortunate such as the poor, handicapped people etc. and natural disaster relief; and to enhance the involvement and participation of youth in community development by providing a scheme for the youth who needs skill training and gives support to voluntary organisations recognized by the government;

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to "build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all".

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

- ☒ Establishment of minimum norms and standards in education
- ☒ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- ☒ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

- 1) Different Abilities Design Guideline (2018), published by Ministry of Development: ensures new schools are compliant and educational institutions are regulated by the Ministry of Development's Building Guidelines and Requirements (4th Edition 2017).
- 2) Brunei via MOE has implemented Whole School Evaluation (WSE) which aims to evaluate and monitor government schools all over the country in four main domains

similar to international school standards which are: Leadership and Management, Teaching and Learning, Ethos and Environment and Students Learning Outcomes.

- 3) MOE initiatives: (i) The Model Inclusive Schools Project was introduced and implemented in selected primary and secondary schools, with the aim of improving access and participation for students with special needs. (ii) Centres of Excellence for students with special needs were also introduced to promote equal and equitable opportunities according to student needs and abilities in order to ensure access, engagement and active participation. As part of a centralization project, local schools were equipped with appropriate special needs infrastructure and facilities, specialised resources and learning equipment as well as the provision of Special Education Needs Assistance (SENA) teachers, resource teachers and teacher aides to meet the needs of students based on their diagnosis.

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

- ☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)
- ☒ Initial training and continuous professional development are provided
- ☒ Minimum standards and qualifications are required for the teaching profession
- ☒ Measures taken to strengthen the social status and attractiveness of the teaching profession
- ☒ Performance monitoring systems
- ☐ Measures taken to increase women in leadership positions in education
- ☒ Other:

Brunei Teachers' Standards (BTS) is a set of teaching competencies designed to raise the quality of teaching in order to improve attainment of all students and the overall quality of education in Brunei Darussalam. The Teacher Performance Appraisal (TPA) is an appraisal system to evaluate the competency of teaching, the quality of students' achievements and learning using the Brunei Teachers' Standards (BTS) framework.

Brunei Darussalam School Leadership Standard (BDSLS) will help support leadership development for aspiring and current school principals, as well as the effective recruitment of school principals.

For example,

- Out of all the leaders in the Ministry of Education (i.e. Minister and Permanent Secretaries, Directors and Heads), 40% of them are women.

- According to Brunei's Education Statistics Year 2018, there are 7933 female teachers (73% of total teachers) and 3,001 male teachers (27% of total teachers)

- Please briefly elaborate further on the measures taken:

The Brunei Darussalam Teachers Academy (BDTA) aims to provide continuous and quality professional development programmes that develop and build teachers' capacity. This programme is designed to develop the expertise of teachers in their respective fields towards effective teaching and learning, thereby promoting students' excellence. Currently, to evaluate the quality of teaching and learning, and to ensure inclusive and equitable quality education, two instruments were developed: (1) Teacher Performance Appraisal (TPA) and (2) Teacher Improvement Plan (TIP). The first instrument includes performance descriptors to measure teaching competencies, and the second, provides qualitative information on teachers' training needs to address competency gaps. In addition, Student Assessment Tracker (SAT), is an instrument developed to measure students' achievements in literacy and numeracy. All these instruments are to ensure consistently high-quality teaching and learning.

The MOE has newly established the Department of Educators Management to ensure the Ministry is supplied with highly skilled and successful human resource (teachers, school leaders and specialists) through a comprehensive and robust human resource management that focuses on four domains:

- Development and implementation of rigorous and comprehensive selection and recruitment process of teachers;
- Strategic deployment and redeployment of teachers and school leaders according to needs and priority;
- Career progression pathway for both teachers and school leaders; and
- Succession planning projection and provision of pre-retirement programmes to educators who are going to retire.

- Have there been instances of discrimination as regards the training for education personnel in your country?

☐ Yes: Has your government addressed this issue?

o Yes

o No

☒ No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹² Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and

¹² Which calls on states to "ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture's contribution to sustainable development".

Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

- ☒ Curriculum includes human rights education
- ☒ Educational and/or extracurricular activities are organized on human rights education
- ☐ Other:

To ensure the future generations are globally competent but deeply rooted in our local values and culture, components of our national philosophy, the Malay Islamic Monarchy (MIB) are integrated in the curriculum and in daily lives in school. The national philosophy inculcates values and knowledge which includes human rights. Social Studies is a subject that also outlined matters on human rights. Aspects of human rights are taught and its concepts are integrated in MIB philosophy.

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

- ☒ Yes
- ☐ No

- Please provide a brief description:

The establishment and registrations of private educational institutions formal and non-formal are regulated under the Education Act Chapter 210.

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹³ explicitly apply to private educational institutions?

- ☒ Yes
- ☐ No

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

The National Education System for the 21st Century (SPN 21): provides students with multiple pathways according to their individual capabilities, interests, inclination, growth and development, thereby catering to their needs.

Additionally, the Education Act, 2003 provides for the National Education System and the establishment of private educational institutions using the National Curriculum and

¹³ See: Article/Paragraph 1(1).

expatriate schools, thereby allowing for alternatives in pre-school education, primary education, secondary education, post-secondary education and higher education.

[Note: Education Act, 2003 does not prohibit discrimination in private education]

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

☒ Yes

☐ No

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

☒ Constitutional laws and/or legislation protect the right to education of national minorities

☐ Legislation or regulations guarantee the right of national minorities to study in their mother tongue

☐ Curriculum is adapted to national minority needs

☐ Teachers are trained to adapt to national minority needs

☐ Other:

- Please provide a brief description of the provisions:

The National Education System for the 21st Century (SPN 21): provides students with multiple pathways according to their individual capabilities, interests, inclination, growth and development, thereby catering to their needs.

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states

to eliminate and prevent discrimination in education based notably on national origin.¹⁴ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁵ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to "ensure equal access to all levels of education and vocational training for the vulnerable", including "children in vulnerable situations", and covers the majority of SDG4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

- ☐ Inclusion in mainstream education
- ☐ Provision of language courses
- ☐ Specific training for educational staff
- ☐ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance
- ☐ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☐ Accelerated learning programmes
- ☐ Non-formal and/or alternative education programmes
- ☐ Financial support
- ☐ Other innovative measures:

Please briefly elaborate further on the measures taken:

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

- 1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and

¹⁴ Articles/Paragraphs 1 and 3.

¹⁵ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- ☒ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

Challenges:

- 1) All schools have managed to register their Parents-Teachers Associations and many actively pursue various initiatives and activities to engage parents and guardians. In addition, the Department of Schools has supported schools by creating Parents-Teachers Association at the national level and conducting Parents Teachers Symposium. There is a challenge in sustaining a high level of parents' involvement and participation.

- ☐ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

- ☐ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/ inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

- ☐ Other:

- 1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages

- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ☐ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other:

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